

সাসটেইনেবল ফাইন্যান্স ডিপার্টমেন্ট

বাংলাদেশ ব্যাংক

প্রধান কার্যালয়

ঢাকা

ওয়েবসাইট: www.bb.org.bd

এসএফডি সার্কুলার নং-০১

এপ্রিল ২২, ২০২০

তারিখঃ -----

বৈশাখ ০৯, ১৪২৭

ব্যবস্থাপনা পরিচালক/প্রধান নির্বাহী

বাংলাদেশে কার্যরত সকল তফসিলি ব্যাংক ।

করোনা ভাইরাসের কারণে সৃষ্ট সংকট মোকাবেলায় প্রি-শিপমেন্ট ক্রেডিট খাতে পুনঃঅর্থায়ন স্কীম ।

ব্যাংকিং প্রবিধি ও নীতি বিভাগ কর্তৃক জারীকৃত বিআরপিডি সার্কুলার নং ০৯ তারিখ এপ্রিল ১৩, ২০২০ এর প্রতি আপনাদের দৃষ্টি আকর্ষণ করা যাচ্ছে ।

২। উক্ত সার্কুলার অনুযায়ী গঠিত ৫০০০ (পাঁচ হাজার) কোটি টাকার পুনঃঅর্থায়ন স্কীমের আওতায় আগ্রহী ব্যাংকসমূহকে Annexure-A অনুযায়ী বাংলাদেশ ব্যাংকের সাসটেইনেবল ফাইন্যান্স ডিপার্টমেন্ট এর সাথে ‘অংশগ্রহণ চুক্তি (Participation Agreement)’ সম্পাদন করতে হবে ।

৩। অংশগ্রহণ চুক্তি সম্পাদনকারী ব্যাংক কর্তৃক সাপ্তাহিক ভিত্তিতে সংশ্লিষ্ট রপ্তানী পণ্য জাহাজীকরণের পরবর্তী সপ্তাহে এ বিভাগে পুনঃঅর্থায়নের আবেদন (Annexure-M) করতে হবে । সংশ্লিষ্ট পণ্য জাহাজীকরণের পরই কেবল আলোচ্য পুনঃঅর্থায়ন সুবিধার দাবী পর্যালোচনা-যোগ্য হতে পারে ।

৪। বিআরপিডি সার্কুলার ০৯/২০২০ এর নির্দেশনা এবং এ বিভাগের সাথে সম্পাদিত চুক্তি মোতাবেক আলোচ্য পুনঃঅর্থায়ন স্কীমের আওতায় ব্যাংক কর্তৃক বিতরণকৃত ঋণের বিপরীতে পুনঃঅর্থায়ন সুবিধা গ্রহণের জন্য ব্যাংকের ব্যবস্থাপনা পরিচালক/প্রধান নির্বাহীর স্বাক্ষরিত আবেদন পত্রের সাথে নিম্নবর্ণিত দলিল/তথ্যাদি দাখিল করতে হবেঃ

- (i) নির্ধারিত ছক অনুযায়ী প্রয়োজনীয় তথ্য (Annexure- B, C);
- (ii) ঋণ বিতরণ সংক্রান্ত সনদপত্র/মজুরীপত্র;
- (iii) প্রি-শিপমেন্ট রপ্তানি ঋণ খাতে বিতরণের সমন্বিত বিবরণী;
- (iv) প্রতিশ্রুতিপত্র(Annexure-D) ও লেটার অব কনটিনিউটি (Annexure-E);
- (v) সংশ্লিষ্ট রপ্তানী আদেশ/রপ্তানী ঋণপত্রের কপি;
- (vi) সংশ্লিষ্ট Consignment এর Commercial Invoice এর কপি;
- (vii) Bill of Lading (B/L)/Airway Bill/FCR(Forwarder Cargo Receipt);
- (viii) Bill of Export এর কপি
- (ix) রপ্তানী পণ্য প্রস্তুতিকরণ সম্পন্নের প্রত্যয়ন এবং
- (x) আন্তর্জাতিকভাবে স্বীকৃত সংস্থা কর্তৃক ক্রেতার ক্রেডিট রিপোর্ট ইত্যাদি ।

চলমান পাতা/২

৫। পুনঃঅর্থায়নের আওতায় চুক্তিতে অংশগ্রহণকারী ব্যাংকের ব্যবস্থাপনা পরিচালক/প্রধান নির্বাহীর স্বাক্ষরে ত্রৈমাসিক ভিত্তিতে ঋণ বিতরণ ও আদায় সংক্রান্ত তথ্য Annexure-F অনুযায়ী সংশ্লিষ্ট ত্রৈমাসিক অন্তে পরবর্তী ১৫ (পনেরো) দিন যথা মার্চ, জুন, সেপ্টেম্বর এবং ডিসেম্বর ভিত্তিক প্রতিবেদন যথাক্রমে এপ্রিল, জুলাই, অক্টোবর এবং জানুয়ারী ১৫ তারিখের মধ্যে মহাব্যবস্থাপক, সাসটেইনেবল ফাইন্যান্স ডিপার্টমেন্ট, বাংলাদেশ ব্যাংক বরাবর দাখিল করতে হবে। পুনঃঅর্থায়নকৃত ঋণ সম্পর্কিত বাংলাদেশ ব্যাংকের যাচিত তথ্যাদি/বিবরণী নির্ধারিত সময়ে দাখিল করা না হলে সংশ্লিষ্ট আইন ও বিধি-বিধান অনুযায়ী যথাযথ ব্যবস্থা গ্রহণ করা হবে।

৬। এ পুনঃঅর্থায়ন সুবিধার শর্তাদি/বিধি-বিধানের বিষয়ে যে কোন সংযোজন, বিয়োজন এবং পরিমার্জনের অধিকার সাসটেইনেবল ফাইন্যান্স ডিপার্টমেন্ট, বাংলাদেশ ব্যাংক সংরক্ষণ করে।

৭। এ সার্কুলারের সংযোজনীসমূহ (Annexure A, B, C, D, E, F, M) সার্কুলারের অবিচ্ছেদ্য অংশ মর্মে গণ্য হবে। এছাড়া, বিআরপিডি সার্কুলার নং ০৯/২০২০ এর অন্যান্য সকল নির্দেশনা পরিপালনীয় হবে।

ব্যাংক কোম্পানি আইন, ১৯৯১ এর ৪৫ ধারায় প্রদত্ত ক্ষমতাবলে এ নির্দেশনা জারি করা হ'ল যা অবিলম্বে কার্যকর হবে।

আপনাদের বিশ্বস্ত,



(খন্দকার মোরশেদ মিল্লাত)

মহাব্যবস্থাপক

ফোন : ৯৫৩০৩২০

e-mail: morshed.millat@bb.org.bd

gm.sfd@bb.org.bd

ANNEXURE- M

Date: Month DD, YYYY

General Manager
Sustainable Finance Department
Bangladesh Bank
Head Office
Dhaka

Application for Loan/Investment under Pre-Shipment Credit Refinance Scheme

Dear Sir,

Please refer to BRPD Circular No. 09 dated April 13, 2020 and SFD Circular No. 01 dated April 22, 2020 on the captioned subject.

In accordance with the procedures set in the above mentioned circulars, we, (Name of the Bank) hereby request refinance from Bangladesh Bank against the advance/investment made by our bank as per Annexure B and Annexure C.

We are enclosing here-with documents in support of our pre-shipment loan/investment disbursement as required from your end.

We would, therefore, request you to grant re-finance of total BDT xxxxxx and credit our current account number xxxx maintained with your Motijheel Office. We hereby authorize you to debit our current account with yourself for the principal and interest amount on the due date as per the said circulars and Participation Agreement (Annexure-A) if not repaid by us within the due date.

Your's faithfully,

Signature:
Name:
Managing Director/Chief Executive Officer
Phone Number:
email:

Enclosed documents

(As per BRPD Circular 09, dated April 13, 2020 and SFD Circular No. 01, dated April 22 2020}

ANNEXURE-A

PARTICIPATION AGREEMENT

Between

BANGLADESH BANK(BB)(Central Bank of Bangladesh)

And

[Name of the Scheduled Bank in Bangladesh]

As participant in the

BB's REFINANCE SCHEME for PRE-SHIPMENT CREDIT

PARTICIPATION AGREEMENT

PARTIES

This Participation Agreement (hereinafter also referred to as “Participation Agreement” or ‘Agreement’) is signed on the day of, 20.....

Between

Bangladesh Bank (hereinafter also called as ‘BB’), established by the Bangladesh Bank Order, 1972 (President’s Order No.127 of 1972) having its Head Office at Motijheel C/A, Dhaka, Bangladesh represented by the **Sustainable Finance Department (hereinafter also called as ‘SFD’)**

And

[Name of the Bank] (hereinafter also called as “Participating Financial Institution” or ‘PFI’), duly established under the Companies Act 1994 and carrying on its business under the Bank Company Act 1991 (Amended up-to 2013) having license from Bangladesh Bank under BB License No..... dated, as participant in the BB’s **Refinance Scheme for Pre-shipment credit**.

PREAMBLE

Whereas, (A) BB introduced a refinancing scheme (revolving fund) of Tk.5000.00 (Five Thousand) Crore to offer refinance facility against the Bank’s finance to boost up export and foreign exchange earnings with a view to contributing to the economic development of Bangladesh.

(B) Ways of offering refinance facilities to the PFIs against their financing in **Pre-shipment credit** identified/proclaimed by the Bangladesh Bank will be determined based on the terms and conditions set forth in the BRPD Circular No. 09 dated April 13, 2020 and SFD Circular No. 01 dated April 22, 2020 and also as per the circulars/circular letters to be issued time to time by the BB.

(C) It is required for the PFI which is interested in availing refinance facilities under the BB’s Refinance Scheme for **Pre-shipment credit** to enter into a participation agreement with the BB.

(D) PFIs those are interested to avail refinance facilities from the above-mentioned refinance scheme/fund may avail of the refinance facility upon fulfilment of the terms and conditions set forth in BRPD Circular No. 09 dated April 13, 2020 and SFD Circular No. 01 dated April 22, 2020 and also as per the circulars/circular letters to be issued time to time by the BB and also has to agree to comply with the terms and conditions of this participation agreement.

Now, therefore, the parties hereby agree as follows:

Article-I

Section-1: Definitions and Related Terms.

Unless the context otherwise requires, the terms defined in this section, for the purposes of this agreement and of any agreement supplemental thereto, have the respective meaning herein specified, as follows:

- a) 'BB' means Bangladesh Bank, the central bank of the Peoples Republic of Bangladesh established by the Bangladesh Bank Order, 1972 (President's Order No.127 of 1972).
- b) 'SFD' means Sustainable Finance Department of Bangladesh Bank.
- c) 'PFI' means Participating Financial Institution (Scheduled Bank) that wishes to participate in the BB's Refinancing Scheme for **Pre-shipment credit**.
- d) 'Bank' means any scheduled bank operating its business in Bangladesh having banking license from the Bangladesh Bank.
- e) 'BRPD' means Banking Regulation and Policy Department of Bangladesh Bank.
- f) 'Financing' means the lending by PFI to the beneficiary/ultimate borrower under the refinancing scheme.
- g) 'Refinancing' means the funding of the BB that will be provided to the PFI against their financing under the Refinance Scheme for Pre-shipment credit.
- h) 'Beneficiary' means any borrower who is an exporter/export oriented industry/institution that may get loan for **Pre-shipment credit** under the refinance scheme.
- i) 'Taka' (hereinafter also called as 'Tk') means the currency of the People's Republic of Bangladesh.
- j) 'Fund' means refinance scheme fund for pre-shipment credit.

Article-II

Eligibility for availing Refinance

- a) Under this scheme Refinance facility will be considered only for **Pre-shipment credit** as per BRPD Circular 09 dated April 13, 2020. No credit facility for B/B L/C and other Accessories and or any other loan shall be considered under this refinance scheme.
- b) Refinanceable amount will be determined upon each/individual consignment's export value (as of commercial invoice) after shipment of the consignment which must not exceed the maximum 10% of the each/individual consignment's export value as set by the Bangladesh Bank.

- c) No loan given to defaulter will be eligible for refinance under this scheme.
- d) No loan given to borrowers having overdue export bill as per Guidelines for Foreign Exchange Transactions (GFET) will be eligible for refinance under the scheme.
- e) According to this agreement, the PFI will submit Demand Promissory Note (DP Note) in favour of the Bangladesh Bank before BB's release of disbursement of refinance to the PFI to ensure repayment of refinance with interest.
- f) In case of any violation/deviation/non-compliance of the rules/regulations/notifications/guidelines/circular/circular letters by the PFI will cause immediate cancellation of the refinance approval and BB will go for immediate deduction of the refinanced amount with interest (Bank rate plus 5%) from the non-compliant PFI's current account maintained with Bangladesh Bank, Motijee Office.

Article-III

Section-1: Rate of Interest under Refinance Scheme for Pre-shipment credit.

PFI may charge interest @ 6.00% pa at maximum on **Pre-shipment credit** to the borrower and Bangladesh Bank will charge/realize interest @ 3.00% on refinance to PFI as per section 8 and 9 of BRPD circular 09/2020 dated April 13, 2020

Article-IV

Section-1: Application Procedure under Refinance Scheme for Pre-shipment credit.

- a) PFI will submit application duly signed by their MD/CEO to GM, SFD, BB, HO on weekly basis within the next week after the date of shipment of the consignment against their Pre-shipment Credit with evidence of shipment and other related documents.
- b) PFI can get up-to 100% (if eligible) refinance against their disbursed loan amount under this scheme. In this regard Bangladesh Bank's decision will be considered as final.

Article-V

Recovery and Monitoring.

Provisions contained in section 13 of BRPD Circular No. 09/2020 dated April 13, 2020 to be duly observed regarding recovery of credit disbursed by the PFI to the borrower and refinance released to PFI by BB under the scheme.

Article-VI

Eligible sector under Refinance Scheme.

Locally produced export oriented industries/enterprises.

Article-VII

Proper Utilization of Pre-shipment Credit and other Specified Conditions

Section 1.1: Proper Utilization of Pre-shipment Credit

PFI will provide/furnish information/documents/statements to the BB regarding end-use/proper utilization of the refinanced **Pre-shipment Credit** in the prescribed forms and manner asked by the BB. Bangladesh Bank will preserve the right to conduct onsite inspection (if required) at any time to verify proper utilization of the refinanced loan.

Section-1.2: Other specified conditions.

a) Selection of borrower, loan sanction, taking securities against loan, disbursement, documentation, determination of debt-equity ratio, proper utilization and monitoring of loan to be ensured by PFI on the basis of

- (i) existing circulars/circular letters issued by the Bangladesh Bank
- (ii) PFI's own rules/guidelines and
- (iii) Banker-Customer relationship

b) Total responsibility and liability regarding loan risks and loan recovery of the loan to client will be vested at the PFI's end.

c) Repayment of refinance can not be correlated with the recovery of loan by the PFI from the beneficiaries/ultimate borrowers.

d) If the disbursed loan account becomes default at the beneficiary/ultimate borrower's level, the refinance facility will by default be considered as void. PFI must instantly inform the BB about default of such loan. Bangladesh Bank will recover the outstanding refinanced loan amount along-with interest at a time.

e) PFI will ensure duly compliance of required/applicable directions/provisions imposed/circulated by the competent authority and Bangladesh Bank before loan disbursement.

f) Bangladesh Bank will take appropriate measures/necessary steps according to the prevailing laws and regulations, if the PFI does not provide necessary information/statement regarding refinance of Pre-shipment Credit within due time as determined by BB's rules/regulations.

g) The tenor of this revolving refinance scheme is 3 (three) years and the refinance facility under the said scheme will be continued till the availability of the fund..

h) Bangladesh Bank preserves the right to change/amend or make any addition/deletion or modification regarding the terms and conditions of the refinance scheme/fund.

i) Circulars/Circular Letters to be issued from time to time by the Bangladesh Bank regarding such amendments as mentioned in the sub-section 'h' above will be treated as an integral part of this agreement.

j) All risks related to loan given to borrower will be borne by PFI and PFI will ensure the compliance of export and production related directions/policy of the Government.

k) PFI will duly follow the BB's rules of classification and provisioning regarding the concerned loan.

l) No refinance facility will be considered against pre-shipment credit allowed under export order/export credit issued by shell company/bank.

m) No refinance facility will be considered before execution of the concerned export consignment.

n) PFI shall follow the policy of Single Borrower Exposure Limit in case of extended credit facility favouring single customer/group.

o) Bangladesh Bank preserves the right to reject any application of refinance under this Scheme, due to cause/causes considered fit to it and not to be explained.

IN WITNESS WHEREOF, the [***Name of the PFI***] has caused this agreement to be executed in its name and its corporate seal to be hereunto affixed and attested by its duly authorized officers, and the Bangladesh Bank as the administrator of the fund, has caused this agreement to be executed, all as of the date first above written.

[**Name of the PFI**]
[PFI SEAL]

[Signature]

[Managing Director/CEO]
[SEAL]

BANGLADESH BANK
[BB SEAL]

[Signature]

[General Manager]
Sustainable Finance Department
[SEAL]

WITNESS:

1. [Signature]
[Name and designation of witness from BB]
[SEAL]

2. [Signature]
[Name and designation of witness from PFI]
[SEAL]

ANNEXURE-B (FOR HEAD OFFICE)

Name of the Bank :

[illegible]

Signature with Seal

MD/CEO/(In-charge of MD or CEO) /Credit Head/ID Head
(Name & Designation with email address and Phone Number)

ANNEXURE-C (FOR BANK BRANCH)

Name of the Branch:

Branch Code:

Name of the Borrower:

Address of the Borrower:

CIB code of the Borrower:

CIB Status as of Application Date:

Sl, No.	Name of the Buyer with address	Export Order/ Export L/C Number & Date	Date of Expiry of Export Order/Export L/C	Value of Export Order/Export L/C	
				(in FC)	(in BDT)
1	2	3	4	5	6

Export Value As per Commercial Invoice		Value of Back to Back (in Taka)		Amount of Finance in accessories	Amount of other related Finance	Amount of Pre-shipment Credit by bank (PFI)
(in FC)	(in BDT)	(in FC)	(in BDT)	(in BDT)	(in BDT)	(in BDT)
7	8	9	10	11	12	13

Amount of Refinance Claim (in BDT)	Date of disbursement of Pre-shipment Credit	Date of Shipment of exported goods	Remarks from Bank End	Column for BB use
14	15	16	17	18

Authorised signature & Seal

Branch Manager/Branch In-charge

(Name & Designation with email address and Phone Number)

Counter Signed by Credit Head/ID Head/Authorised Head Office Official

(Name & Designation with email address and Phone Number)

ANNEXURE- D

PROMISSORY NOTE

Tk.

Date

We jointly and severally promise to pay on demand to or order, the sum of Tk.

..... (Taka

.....

.....)

Only for value received with interest thereon from this date, at the rate of

..... percent per annum or as may be fixed by the

Bangladesh Bank from time to time.

Dated:

Yours faithfully,

Managing Director/Chief Executive Officer

Witness:

Stamp

Letter of Continuity

General Manager
Sustainable Finance Department
Bangladesh Bank, Head Office.

Dear Sir,

I/We enclose herewith a Demand Promissory Note for
..... Signed by me/us on behalf of the
Bank which is given to you as security for the repayment of any Loan (Refinance against
Pre-shipment Credit presently outstanding to my/our name or in the name of either of
us/bank or in the exporter's institution and also for the repayment of any Loan (Refinance
against Pre-shipment Credit) to the extent of
.....
.....which I/We or either of
us may avail of hereafter and the said Promissory Note is to be a security to you for the
repayment of the ultimate balance amount remaining unpaid on the Loan (Refinance against
Pre-shipment Credit) account and I/We am/are to remain liable on the said Promissory Note
notwithstanding the fact that by payments made into the Loan (Refinance against Pre-
shipment Credit) amount from time to time the said Loan(Refinance against Pre-shipment
Credit) account may from time to time be reduced or extinguished..

Although the said Loan(Refinance against Pre-shipment Credit) account is in the name of
.....
..... and will be operated upon only by the
said all of us shall be liable jointly
and severally as aforesaid

Dated:

Yours faithfully,

Managing Director/Chief Executive Officer

Bank:

ANNEXURE- F

**Quarterly Statement of Refinance against Pre-shipment Credit
as of March/June/September/December,**

SL.No .	Branch Name Branch Code	Export Value As per Commercial Invoice (in '000 BDT)	Amount of Pre-shipment Credit by bank (PFI) (in '000 BDT)	Re- finance Claimed for Number of Borrowers	Amount Claimed for Re-finance (in '000 BDT)	Amount Approved for Re-finance by BB (in '000 BDT)	Outstanding Balance (as per CL) of Pre-shipment Credit under BB's Re-finance Scheme (in '000 BDT)		
							UC (Standard)	UC (SMA)	Classified
1	2	3	4	5	6	7	8	9	10

Non-repatriated Export Value (in '000 BDT)	Remarks
11	12

Signature with Seal
Credit Head/ID Head
(Name & Designation with email address and Phone Number)

N.B. This quarterly report must be forwarded to GM,SFD,BB,HO (duly signed by MD/CEO/In-charge of MD/CEO on **Letter Head Pad** of the respective bank)